

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

STEWART MCKENZIE,

Petitioner

VS.

LAYNE RINGGENBERG,

Respondent

) Case Number: FDI-25-801724

) Hearing Date: August 27, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE MOTION FOR SPOUSAL SUPPORT AND MOVE OUT ORDERS

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Stewart McKenzie and Respondent Layne Ringgenberg.
- 2) On 7/22/26, Respondent filed a Request for Order seeking \$3,500 in temporary monthly spousal support, modification of the current order (requiring Respondent to vacate the marital residence by 8/1/26) to provide Respondent 30 days from the issuance of the support order to move out. Respondent asserts his rental applications for apartments have been rejected because his earnings are too low to qualify. Respondent states Petitioner currently pays \$3,100 in household expenses on the marital residence in lieu of support.
- 3) On 8/4/26, the parties filed a Stipulation and Order regarding the sale of the marital residence, which, in pertinent part, requires Respondent to vacate the property by 8/1/26.
- 4) On 8/14/26, Petitioner filed a Responsive Declaration in opposition to Respondent's request. Petitioner states he cannot afford to pay temporary monthly spousal support and is overextended on the costs he is currently covering on the marital residence. Petitioner offers to pay Respondent

1 a one-time cash payment from his IRA to help him secure alternative housing. Petitioner asserts it
2 has been more than 290 days since the parties first stipulated to Respondent vacating the marital
3 residence and Respondent is intentionally delaying.

4 5) On 8/14/26, Petitioner filed an Income and Expense Declaration.

5 6) On 8/20/26, Respondent filed a Reply Declaration asserting that a one-time cash payment from
6 Petitioner's IRA would not resolve the problem for the following reasons: (a) the rental
7 applications were denied due to insufficient income to meet the approval requirements (steady
8 income of two to three times the apartment rent); (b) the parties already agreed to division of the
9 IRA account. Respondent disputes that he is intentionally delaying.

10 7) On 8/20/26, Respondent filed an Income and Expense Declaration.

11 **B. Findings and Order**

12 1) **The parties are ordered to appear.**
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